

MUTUAL NON-DISCLOSURE AGREEMENT

Discovery, Systems Review & Solution Design

This Mutual Non-Disclosure Agreement (this “**Agreement**”) is entered into as of _____ (the “**Effective Date**”) by and between:

Connor MacIvor, an individual conducting business in Santa Clarita, California, including through ConnorWithHonor and HonorElevate (“**Provider**”); and

_____ of _____ (“**Counterparty**”).

Each is a “**Party**” and together the “**Parties.**”

1. PURPOSE

The Parties wish to hold open and detailed discussions in which each may reveal non-public information. Those discussions may include: Counterparty describing its business, ideas, goals, operations and existing systems; Provider reviewing Counterparty’s systems and processes end to end; Provider proposing or designing improvements using artificial intelligence, automation, software, websites, marketing systems and related technology; and **Provider explaining the methods, architecture and techniques by which he builds and delivers that work** (collectively, the “**Purpose**”). The Parties enter this Agreement so that both can speak candidly without either losing control of what they reveal.

2. CONFIDENTIAL INFORMATION

“**Confidential Information**” means any non-public information disclosed by one Party (the “**Disclosing Party**”) to the other (the “**Receiving Party**”), in any form, whether oral, written, electronic, visual or demonstrated, that is identified as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure. No marking or written designation is required.

Provider's Confidential Information includes, without limitation: the methods, techniques, sequences, architecture and know-how by which Provider designs and delivers his work; artificial intelligence prompts, agent designs, model configurations and orchestration; automation logic, workflows, triggers and campaign structures; funnel, landing page and website architecture; marketing methods, offers, scripts, creative and performance data; system integrations and technical implementations; pricing, fee structures and margins; vendor, platform and partner relationships; and any analysis, recommendation, diagnosis, audit or design Provider produces for or presents to Counterparty.

Counterparty's Confidential Information includes, without limitation: its business ideas, concepts, plans and strategies; operations, processes and internal systems; customer, client and prospect lists and associated data; financial information, pricing and margins; product and service plans not yet public; vendor and partner relationships; and any information about its business revealed in the course of the discussions.

2.1 Reciprocity, expressly stated. The obligations of this Agreement apply equally and identically in both directions. **Provider shall not disclose, publish, repeat, present, teach, or otherwise share any idea, concept, strategy, process, financial detail, customer information, or business plan disclosed to him by Counterparty with any third party,** and shall not use any such information for the benefit of any other client, partner or venture, without Counterparty's prior written consent. Counterparty is subject to the identical obligation with respect to Provider's Confidential Information. Neither Party is asked to accept a restriction the other has not also accepted.

3. MUTUAL OBLIGATIONS

The Receiving Party shall:

1. hold the Disclosing Party's Confidential Information in strict confidence;
2. not disclose it to any third party without the Disclosing Party's prior written consent;
3. use it solely for the Purpose and for no other purpose, including no competitive use;

4. protect it with at least the same degree of care it applies to its own confidential information, and in no event less than reasonable care; and
5. limit access to those employees, contractors and professional advisors with a genuine need to know for the Purpose who are bound by obligations at least as protective as those set out here.

4. NO REPLICATION OF DISCLOSED METHODS

The Parties acknowledge that a candid discussion of the Purpose requires Provider to explain not only *what* he can build but *how* he builds it, and that this know-how has independent commercial value precisely because it is not generally known. Accordingly, Counterparty shall not, during the term of this Agreement and for **two (2) years** following the last disclosure: (a) use Provider's Confidential Information to build, implement, replicate or reproduce the systems, methods or solutions Provider disclosed; (b) direct, engage or enable any employee, contractor, agency or third party to do so on Counterparty's behalf using that information; or (c) disclose that information to any competitor of Provider. Nothing in this Section restricts Counterparty from operating its own business, from using knowledge or skills it possessed independently, or from engaging any provider it chooses using information not derived from Provider's Confidential Information.

5. EXCLUSIONS

Confidential Information does not include information that: (a) is or becomes publicly available other than through breach of this Agreement by the Receiving Party; (b) was rightfully known to the Receiving Party, without restriction, prior to disclosure; (c) is rightfully received from a third party without breach of any confidentiality obligation; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

6. COMPELLED DISCLOSURE

If the Receiving Party is required by law, regulation, subpoena, or court or regulatory order to disclose Confidential Information, it may do so, provided it gives the Disclosing Party prompt written notice to the extent legally permitted so the Disclosing Party may seek a protective order, and discloses only the portion legally required.

7. DATA AND PRIVACY

Where Provider is given access to Counterparty's customer, client or prospect data, Provider shall use that data solely to perform the Purpose, shall not market to, sell, rent or transfer that data to any third party, and shall not use it for the benefit of any other client. Each Party shall comply with applicable privacy, data protection and communications laws with respect to data handled under this Agreement.

8. NO LICENSE; NO OBLIGATION; OWNERSHIP

Nothing in this Agreement grants either Party any license or right, express or implied, in the other Party's Confidential Information, intellectual property, trademarks, systems or work product. Provider retains all right, title and interest in his methods, systems, templates, prompts, tooling and underlying technology, including any improvements to them, regardless of whether they were discussed or demonstrated. Counterparty retains all right, title and interest in its own business information and data. Nothing in this Agreement obligates either Party to proceed with any engagement, and any engagement for services shall be documented in a separate written agreement.

9. RETURN OR DESTRUCTION

Upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy the Disclosing Party's Confidential Information and, if requested, certify destruction in writing, except for copies contained in routine archival backups or required to be retained by law, which remain subject to this Agreement for so long as they are retained.

10. TERM AND SURVIVAL

This Agreement commences on the Effective Date and continues for **two (2) years**, unless earlier terminated by either Party upon thirty (30) days' prior written notice. Confidentiality obligations survive for **three (3) years** following the date of each disclosure. Information constituting a trade secret remains protected for so long as it qualifies as a trade secret under applicable law.

11. REMEDIES

Each Party acknowledges that unauthorized disclosure or use of Confidential Information may cause irreparable harm for which monetary damages would be an

inadequate remedy, and agrees that the Disclosing Party is entitled to seek injunctive or other equitable relief in addition to all other remedies available at law or in equity.

12. GENERAL

Nothing in this Agreement requires either Party to take any action that would violate applicable law, regulation, licensing obligation, or the policies of their respective employers or institutions. This Agreement creates no employment, agency, partnership or joint venture relationship, and does not create, evidence or authorize any referral fee or exchange of anything of value. This Agreement is governed by the laws of the State of California, without regard to its conflict of laws principles, and the Parties consent to venue in Los Angeles County, California. It constitutes the entire agreement between the Parties as to its subject matter, may be amended only in a writing signed by both Parties, and may be executed in counterparts and by electronic signature, each deemed an original. If any provision is held unenforceable, the remainder continues in full force and the unenforceable provision shall be limited only to the extent necessary to make it enforceable.

The Parties have executed this Agreement as of the Effective Date.

Connor MacIvor — Provider

Counterparty — print name, title and company

Date

Date

Not legal advice. This template was not prepared by an attorney and has not been reviewed by counsel. Because it is intended for repeated use with every prospect, have a California business attorney review it once before it becomes your standard. Pay particular attention to Section 4, which is the clause most likely to be negotiated and the one most worth getting right. One review protects every signature that follows.